injury." *Chaplinsky* v. *New Hampshire,* 315 U. S. 568, 572. Yet only a month after *Chaplinsky,* and without reference to that decision, the Court stated in *Valentine* v. *Chrestensen,* 316 U. S. 52, 54, that "the Constitution imposes no such restraint on government as respects purely commercial advertising." For more than 30 years this "casual, almost offhand" statement in *Chrestensen* has operated to exclude commercial speech from the protection afforded by the First Amendment to other types of communication. *Cammarano* v. *United States,* 358 U. S. 498, 514 (Douglas, J., concurring).[1]

Today the Court ends the anomalous situation created by *Chrestensen* and holds that a communication which does no more than propose a commercial transaction is not "wholly outside the protection of the First Amendment." *Ante,* at 761. But since it is a cardinal principle of the First Amendment that "government has no power to restrict expression because of its message, its ideas, its subject matter, or its content," [2] the Court's decision calls into immediate question the constitutional legitimacy of every state and federal law regulating false or deceptive advertising. I write separately to explain why I think today's decision does not preclude such governmental regulation.

---

[1] In recent years the soundness of the sweeping language of the *Chrestensen* opinion has been repeatedly questioned. See *Bigelow* v. *Virginia,* 421 U. S. 809, 819–821; *Lehman* v. *City of Shaker Heights,* 418 U. S. 298, 314–315, and n. 6 (BRENNAN, J., dissenting); *Pittsburgh Press Co.* v. *Human Relations Comm'n,* 413 U. S. 376, 398 (Douglas, J., dissenting); *id.,* at 401, and n. 6 (STEWART, J., dissenting); *Dun & Bradstreet, Inc.* v. *Grove,* 404 U. S. 898, 904–906 (Douglas, J., dissenting from denial of certiorari).

[2] *Police Dept. of Chicago* v. *Mosley,* 408 U. S. 92, 95. See, *e. g., Hudgens* v. *NLRB,* 424 U. S. 507, 520; *Erznoznik* v. *City of Jacksonville,* 422 U. S. 205, 209; *Pell* v. *Procunier,* 417 U. S. 817, 828; *Grayned* v. *City of Rockford,* 408 U. S. 104, 115.